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February 25, 2025

SENATE BILL NO. 250

By: Thompson of the Senate

and

Duel of the House

An Act relating to the Oklahoma Minimum Wage Act; amending 40 O.S. 2021, Section 197.16, which relates to tips, gratuities, meals, or lodging; updating statutory reference; allowing for alternate computation for wage under certain conditions; updating statutory language; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 40 O.S. 2021, Section 197.16, is amended to read as follows:

Section 197.16. A. To compute the minimum wage of any employee coming within the purview of ~~this act~~ the Oklahoma Minimum Wage Act, credit toward the minimum required wage ~~must~~ shall be given for any tips or gratuities, meals, or lodging received by the employee up to but not exceeding fifty percent (50%) of ~~said~~ the wage.

B. To compute the minimum wage of any employee coming within the purview of the Oklahoma Minimum Wage Act should the minimum wage exceed the current federal minimum wage, credit toward the minimum

1 required wage may be given for any tips or gratuities, meals, or
2 lodging received by the employee.

3 SECTION 2. This act shall become effective November 1, 2025.

4 COMMITTEE REPORT BY: COMMITTEE ON ECONOMIC DEVELOPMENT, WORKFORCE
AND TOURISM

5 February 25, 2025 - DO PASS

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